TCD 003/2019 Panther Real Estate Development LLC v Modern Executive Systems Contracting LLC

JULY 07, 2024 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No. TCD 003/2019

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

PANTHER REAL ESTATE DEVELOPMENT LLC

Claimant

and

MODERN EXECUTIVE SYSTEMS CONTRACTING LLC

Defendant

TOMLIN ORDER

UPON the Judgment of Justice Sir Richard Field dated 28 September 2022 in TCD-003-2019

AND UPON the Order of Justice Sir Richard Field dated 3 July 2023

AND UPON the Judgment of the Court of Appeal dated 12 May 2023 in CA-016-2022

AND UPON the Consent Order dated 6 September 2023

AND UPON the Order of Justice Wayne Martin dated 7 November 2023

AND UPON the Parties having agreed to settle the issue of costs in TCD-003-2019 and CA-016- 2022 and the final sum owed by the Claimant to the Defendant in relation to TCD-003-2019 in the terms set out in the Schedule of this Order

IT IS HEREBY ORDERED BY CONSENT THAT:

1. The Claimant shall make payment to the Defendant in the sum of AED 2,632,642.71 within 14 days of this Order in full and final settlement of all claims arisen between the Parties, including all future claims and claims as to costs (the “Settlement Sum”).

2. Upon the payment of the Settlement Sum, the proceedings in TCD-003-2019 shall be deemed terminated and shall be closed.

3. There shall be no order as to costs.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 7 July 2024

At: 12pm